24STCV06416 24STCV06416

County: los-angeles

Division: Civil Law and Motion

Department: 11

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Case Number: 24STCV06416 Hearing Date: June 23, 2026 Dept: 11

Preliminary

Approval of Class Action Settlement

Department SSC-11

Rebecca Ryhal v. L. & R. Distributors, Inc.

Case No. 24STCV06416

Hearing: June 23, 2026

TENTATIVE RULING

CONTINUE preliminary

approval for the parties to address the issues listed in the accompanying

checklist.

BACKGROUND

This is a

wage and hour class action. Defendant L.

& R. Distributors, Inc. (“Defendant” or “L&R”) is a national distributor of retail products to supermarkets, drugstores, health and beauty care stores, and other business.

On March 14, 2024, Rebecca Ryhal (“Ryhal”), individually and on behalf of all others similarly situated, filed a putative class action against Defendant and Does 1 through 50 asserting the following causes of action: (1) Failure to Provide Meal Periods (Labor Code §§512 and 226.7), (2) Failure to Provide Rest Periods (Labor Code §226.7), (3) Failure to Pay Minimum Wages (§§1194, 1194.2, 1197, 1197.1), (4) Failure to Reimburse Business Expenses (Labor Code §2802), (5) Failure to Furnish Timely and Accurate Itemized Wage Statements (Labor Code §226.7 and Applicable IWC Wage Orders), (6) Failure to Pay All Compensation Due During Employment (Labor Code §204), (7) Failure to Pay All Compensation Due Upon Discharge (Labor Code §§201-203), (8) Failure to Pay Wages for All Hours Worked (Labor Code §§1194 and 1197), (9) Unfair, Unlawful, or Fraudulent Business Practices (Business and Professions Code §17200 et seq.) (“Ryhal Action”).

On April 16, 2024, Defendant filed Notice of Removal of Action to Federal Court.

On June 11, 2024, Ryhal filed a First Amended Complaint (“FAC”) alleging an additional cause of action against Defendant for penalties pursuant to the Private Attorneys General Act ("PAGA") at the U.S. District Court for the Central District of California. On August 28, 2024, Ryhal filed a Second Amended Complaint ("SAC").

On June 17, 2024, Yvette Evans ("Evans") filed a putative class action case against Defendant in Santa Clara Superior Court (Case No. 24CV441287) asserting claims for violations of the California Labor Code and the California Business and Professions Code ("Evans Class Action"). (Declaration of Danny Yadidsion ("Yadidsion Decl."), ¶10.) On July 25, 2024, Evans filed a representative action against Defendant pursuant to the PAGA in Santa Clara Superior Court (Case No. 24CV443823) ("Evans PAGA Action"). (Ibid.)

On September 16, 2024, the Court received a Notice of Remand, indicating that, on September 10, 2024, U.S. District Court Judge Monica Ramirez Almadani had approved the parties' stipulation to remand to the Ryhal Action to the Los Angeles Superior Court.

On September 17, 2024, Defendant filed an Answer to the SAC.

On April

10, 2025, Ryhal and Evans (collectively “Plaintiffs”) participated in a full-day mediation before Ann Kotlarski, Esq., which resulted in a settlement. (Yadidsion Decl., ¶17.) A copy of the fully executed long form Stipulated Class Action and PAGA Settlement Agreement (“Settlement Agreement” or “Agreement”) is attached to the declaration of counsel Yadidsion as Exhibit 1. (Id. at ¶2, Ex. 1.) A copy of the redlined version of the Los Angeles Superior Court Model Class Action and PAGA Settlement Agreement is attached as Exhibit 2. (Id. at ¶19, Ex. 2.)

On November 3, 2025, the Court granted leave for filing of an amended complaint pursuant to the stipulation of the parties.

On November 21, 2025, Plaintiffs filed a Third Amended Complaint (“TAC”) against Defendant asserting the following causes of action: (1) Failure to Provide Meal Periods (Labor Code §§512 and 226.7), (2) Failure to Provide Rest Periods (Labor Code §226.7), (3) Failure to Pay Minimum Wages (§§1194, 1194.2, 1197, 1197.1), (4) Failure to Reimburse Business Expenses (Labor Code §2802), (5) Failure to Furnish Timely and Accurate Itemized Wage Statements (Labor Code §226.7 and Applicable IWC Wage Orders), (6) Failure to Pay All Compensation Due During Employment (Labor Code §204), (7) Failure to Pay Wages for All Hours Worked (Labor Code §§1194 and 1197), (8) Unfair, Unlawful, or Fraudulent

Business Practices (Business and Professions Code §17200 et seq.), and (9) penalties under the PAGA (Labor Code §§ 2698-2699.5).

Now before the Court is the Motion for Preliminary Approval of the Class Action and PAGA Settlement ("MPA"), filed on January 9, 2026.

SETTLEMENT CLASS DEFINITION

.

"Action" means the Plaintiffs' lawsuit alleging wage and hour violations against L & R captioned Rebecca Ryhal and Yvette Evans v. L & R Distributors, Inc., et al., Case No. 24STCV06416, initiated on March 14, 2024 and pending in Superior Court of the State of California, County of Los Angeles, and as amended to include the plaintiff and claims of the cases filed by Yvette Evans bearing Santa Clara County Superior Court Case Nos. 24CV441287 and 24CV443823. (Agreement, ¶1.1)

.

"Class" means all current and former non-exempt field merchandisers, supervisory field merchandisers, reset merchandisers, reset leads, and district managers employed by L & R in the State of California during the Class Period. (¶1.5) o

"Class Period" means the period from March 14, 2020 to April 10, 2025. (¶1.12)

o The "Class" definition in Class Counsel's declaration and Proposed Order is presented as follows: "all current and former non-exempt field merchandisers, supervisory field merchandisers, reset merchandisers, reset leads, and district managers employed by Defendant in the State of California during the period from March 14, 2020 through April 10, 2025 who did not sign an arbitration agreement and who do not submit a timely, valid, and complete Request for Exclusion."

(Yadidsion Decl., ¶21; Proposed Order, ¶1.) The Settlement Agreement "Class" definition at ¶¶1.12 and 1.5 does not explicitly exclude individuals who signed arbitration agreements. Clarify whether the parties intend to explicitly exclude individuals who signed arbitration agreements and revise the Settlement Agreement, if necessary.

.

"Aggrieved Employee" means all current and former non-exempt field merchandisers, supervisory field merchandisers, reset merchandisers, reset leads, and district managers employed by L & R in the State of California during the PAGA

Period. (¶1.4)

o

“PAGA Period”

means the period from March 14, 2023 to April 10, 2025. (¶1.31)

.

“Class Member” or “Settlement

Class Member” means a member of the Class, as either a Participating Class

Member or Non-Participating Class Member (including a Non-Participating Class

Member who qualifies as an Aggrieved Employee).

(¶1.9)

o

“Participating Class Member”

means a Class Member who does not submit a valid and timely Request for

Exclusion from the Settlement. (¶1.35)

.

“Plaintiffs” means Rebecca

Ryhal and Yvette Evans, the named plaintiffs in the Action. (¶1.36)

.

“Class Counsel” means Danny

Yadidsion and Shelley K. Mack of Labor Law PC and Larry W. Lee and Max W.

Gavron of Diversity Law Group, APC.

(¶1.35)

o

Plaintiffs and Class Members are represented by two law

firms, as set forth in ¶1.35 of

the Settlement Agreement. Provide

information regarding any fee splitting agreement and whether the client has

given written approval.

.

The Parties agree that class certification and

representative treatment is for purposes of this Settlement only. (¶12.1)

.

The Parties are aware of another pending action asserting

claims against L & R that may be extinguished or affected by the

Settlement: Janine Marie Bello v. L. & R. Distributors Inc. et al.,

Orange County Superior Court Case No. 30-2024-01444477-CUOE-CXC. (¶2.2)

o

Provide

information regarding the status of this matter.

TERMS OF SETTLEMENT AGREEMENT

The essential terms are as follows:

.

The Gross Settlement Amount ("GSA") is $365,000, non-reversionary. (¶¶1.22, 3.1)

o Escalator Clause: Based on its records, L & R estimates that, as of the date of this Settlement Agreement, (1) there are 273 Class Members and 19,141 Total Workweeks during the Class period and (2) there were 188 Aggrieved Employees who worked 10,171 Pay Periods during the PAGA Period. In the event that the number of Total Workweeks included within the Class Period exceeds 19,141, the Parties agree that the settlement Class Period shall be shortened and the end date of the Class Period moved up accordingly to ensure only 19,141 Total Workweeks are included within the Class Period. (¶8)

§ The parties must resolve any uncertainty regarding the Class/PAGA Periods prior to preliminary approval being granted and notice being distributed. Based on current records, the parties and the Administrator must review and verify the workweek total and confirm the end dates of the Class/PAGA Periods, revise the Class and PAGA Period definitions if needed, and remove the period-shortening option from the Escalator Clause. Ensure that the Notice and Proposed Order are modified to match any alterations to the Settlement

Agreement.

§ According to the Settlement Agreement at ¶1.22, the Escalator Clause is

set forth in ¶9. However, the Escalator

Clause is set forth in ¶8 of the Agreement.

Correct the reference.

.

The Net Settlement Amount (“Net”) ($123,333.33) is the GSA minus the following:

o Up to $121,666.67 (1/3 of

GSA) for attorney fees (¶3.2.2);

o Up to $40,000 for

litigation costs (Ibid.);

o Up to $20,000 for Class

Representative Service Payment ($10,000 to each named Plaintiff) (¶3.2.1);

§ Clarify that the Class Representative Service Payment amounts to $20,000

as the Agreement currently states “Class Representative Service Payments to the

Class Representatives of not more than $10,000.00 each.” (¶3.2.1)

§ Each Plaintiff’s Class

Representative payment should not exceed $7,500, absent substantial

justification. Provide justification for

a payment of $10,000.

o Up to $10,000.00 for

settlement administration costs (¶3.2.3);

o Payment of $50,000 PAGA

penalty (75% or $37,500 to the LWDA) (¶3.2.5).

.

Defendant will separately pay employer payroll taxes owed

on the Wage Portions of the Individual Class Payments. (¶3.1)

.

There is no claim requirement. (¶3.1)

.

Funding of Settlement: L & R shall fully fund the

Gross Settlement Amount, and also fund the amounts necessary to fully pay L

& R's share of payroll taxes by transmitting the funds to the Administrator

no later than 14 days after the Effective Date.

(¶4.3)

o "Effective Date" means the date

by when both of the following have occurred: (a) the Court enters a Judgment on

its Order Granting Final Approval of the Settlement; and (b) the Judgment is

final. The Judgment is final as of the latest of the following occurrences: (a)

if no Participating Class Member objects to the Settlement, the day the Court enters Judgment; (b) if one or more Participating Class Members objects to the Settlement, the day after the deadline for filing a notice of appeal from the Judgment; or if a timely appeal from the Judgment is filed, the day after the appellate court affirms the Judgment and issues a remittitur. (¶1.18)

.

Distribution of the GSA: Within 14 days after L & R funds the Gross Settlement Amount, the Administrator will mail checks for all Individual Class Payments, all Individual PAGA Payments, the LWDA PAGA Payment, the Administration Expenses Payment, the Class Counsel Fees Payment, the Class Counsel Litigation Expenses Payment, and the Class Representative Service Payments. Disbursement of the Class Counsel Fees Payment, the Class Counsel Litigation Expenses Payment and the Class Representative Service Payments shall not precede disbursement of Individual Class Payments and Individual PAGA Payments. (¶4.4)

o The Administrator will issue checks for the Individual Class Payments and/or Individual PAGA Payments and send them to the Class Members via First Class U.S. Mail, postage prepaid. The Administrator will send checks for Individual Settlement Payments to all Participating Class Members (including those for whom Class Notice was returned undelivered). The Administrator will send checks for Individual PAGA Payments to all Aggrieved Employees including Non-Participating Class Members who qualify as Aggrieved Employees (including those for whom Class Notice was returned undelivered). The Administrator may send Participating Class Members a single check combining the Individual Class Payment and the Individual PAGA Payment. Before mailing any checks, the Settlement Administrator must update the recipients' mailing addresses using the National Change of Address Database.

(¶4.4.1)

o The Administrator must conduct a

Class Member Address Search for all other Class Members whose checks are retuned undelivered without United States Postal Service ("USPS") forwarding address. Within 7 days of receiving a returned check the Administrator must re-mail checks to the USPS forwarding address provided or to an address ascertained through the Class Member Address Search. The Administrator need not take further steps to deliver checks to Class Members whose re-mailed checks are returned as undelivered. The Administrator shall promptly send a replacement check to any Class Member whose original check was lost or misplaced, requested by the Class Member prior to the void date. (¶4.4.2)

.

Participating

Class Member Payment: An Individual Class Payment calculated by (a) dividing the Net Settlement Amount by the total number of Workweeks worked by all Participating Class Members during the Class Period and (b) multiplying the result by each Participating Class Member's Workweeks. (¶3.2.4) Non-Participating Class Members will not receive any Individual Class Payments. The Administrator will retain amounts equal to their Individual Class Payments in the Net Settlement Amount for distribution to Participating Class Members on a pro rata basis.. (¶3.2.4.2)

o Tax Allocation: 33% as wages; 67% as interest and penalties. (¶3.2.4.1)

.

PAGA Payments: The Administrator will calculate each Individual PAGA Payment by (a) dividing the amount of the Aggrieved Employees' 25% share of PAGA Penalties ($12,500.00) by the total number of PAGA Period Pay Periods worked by all Aggrieved Employees during the PAGA Period and (b) multiplying the result by each Aggrieved Employee's PAGA Period Pay Periods. (¶3.2.5.1) If the Court approves PAGA Penalties of less than the amount requested, the Administrator will allocate the remainder to the Net Settlement Amount. (¶3.2.5.2)

o

Tax Allocation: The Administrator will report the

Individual PAGA Payments on IRS 1099 Forms. (¶3.2.5.2)

· "Response Deadline" means 60 days after the Administrator

mails Notice to Class Members and Aggrieved Employees, and shall be the last

date on which Class Members may: (a) fax, email or mail Requests for Exclusion

from the Settlement, or (b) fax, email or mail his, her, or their Objection to

the Settlement. Class Members to whom Notice Packets are resent after having

been returned undeliverable to the Administrator shall have an additional 14

calendar days beyond the Response Deadline has expired. (¶¶1.43, 7.4.4) The same deadlines apply to workweek

challenges. (¶7.6)

o

If the number of

valid Requests for Exclusion identified in the Exclusion List exceeds 10% of

the total of all Class Members, L & R may, but is not obligated, elect to

withdraw from the Settlement. (¶9)

·

Uncashed Settlement Checks: The face of each check shall

prominently state the date (not less than 180 days after the date of mailing)

when the check will be voided. The Administrator will cancel all checks not

cashed by the void date. (¶4.4.1) For any Class Member whose

Individual Class Payment check or Individual PAGA Payment check is uncashed and cancelled after the void date, the Administrator shall transmit the funds represented by such checks to the California Controller's Unclaimed Property Fund in the name of the Class Member thereby leaving no "unpaid residue" subject to the requirements of Code of Civil Procedure section 384, subdivision (b). (¶4.4.3)

.

The settlement administrator will be Apex Class Action LLC. (¶¶1.2, 7.1; see Declaration of Sean Hartranft.)

.

Plaintiffs filed the proposed settlement agreement with the LWDA on ______. Provide proof of submission of the proposed settlement agreement to the LWDA. (Labor Code § 2699, subd. (l)(2).)

· Participating class members and the named Plaintiffs will release certain claims against Defendant. (See further discussion below)

ANALYSIS OF SETTLEMENT AGREEMENT

1.

Does a presumption of fairness exist?

1.

Was the

settlement reached through arm's-length bargaining? Yes. On April 10, 2025,

Plaintiffs participated in a full-day mediation before Ann Kotlarski, Esq.,

which resulted in a settlement.

(Yadidsion Decl., ¶17.) A copy of the fully executed long form Stipulated

Class Action and PAGA Settlement Agreement ("Agreement") is attached to the

declaration of counsel Yadidsion as Exhibit 1.

(Id. at ¶2, Ex.

1.)

2.

Were

investigation and discovery sufficient to allow counsel and the court to act

intelligently?

Yes. Before filing the lawsuit, Class Counsel investigated and

researched the facts and applicable law and interviewed Plaintiffs. (Yadidsion Decl., ¶11.) After filing the lawsuit, Class Counsel

conducted a thorough investigation of the facts and claims giving rise to the

action, including: (1) conducting informal discovery, propounding written discovery and meeting and conferring with defense counsel about the same; (2) reviewing and analyzing time and pay records as well as employment handbooks, Plaintiffs' personnel files and related documents, relevant company policies and other documentation; (3) researching the applicable law and potential defenses; (4) constructing damage models based on interpretations of California law; and (5) reviewing information provided by Defendant in the mediation. (Id. at ¶12.) Moreover, in response to Plaintiffs' written discovery requests, including special interrogatories, requests for production, and requests for admission, Defendant produced voluminous documents and data, including Plaintiffs' personnel files and related records, Defendant's employee handbook, Defendant's company policies and procedures relating to its employment practices, and time and payroll records for the proposed Class Members. (Id. at ¶13.) Through the informal and written discovery, Defendant provided Plaintiffs' counsel with all relevant policy documents and time records, payroll records and expense reports for a random sampling of approximately 30% of Defendant's California-based Field Service Merchandisers covering the time period from March 14, 2020 through November 21, 2024. (Id. at ¶15.) Finally, after the parties agreed to mediation, Defendant informally produced additional information, including a spreadsheet containing information regarding the periods of employment, hourly rate of pay and number of weeks worked for each putative class member. (Id.

at ¶16.) Class Counsel reviewed

and analyzed this information and evaluated the law, claims, defenses, and

Defendant's potential damages. (Ibid.) Class Counsel also hired an expert to

calculate Defendant's potential liability.

(Id. at ¶17.)

Demonstrate that the sample is statistically reliable.

3.

Is counsel

experienced in similar litigation? Yes. Class Counsel are experienced in class

action litigation, including

wage and hour class actions. (Yadidsion Decl., ¶¶3-5; Declaration of Larry W. Lee, ¶¶7-9; Declaration of Max W. Gavron, ¶¶6-12.)

4.

What percentage

of the class has objected? This cannot be

determined until the fairness hearing.

See Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial

(The Rutter Group 2014) ¶ 14:139.18, ("Should the court receive objections to

the proposed settlement, it will consider and either sustain or overrule them at the

fairness hearing.”).

CONCLUSION: The settlement is entitled to a presumption

of fairness.

2.

Is the settlement fair, adequate, and reasonable?

1.

Strength of

Plaintiff’s case.

“The most important factor is the strength of the case for plaintiff on the merits, balanced against the amount offered in

settlement.” (Kullar v. Foot Locker Retail, Inc. (2008) 168 Cal.App.4th 116, 130.)

Counsel

has provided the following exposure analysis:

CLAIM

ESTIMATED EXPOSURE

Meal Periods

$494,666.00

Rest Breaks

$583,183.00

Unpaid Wages (Minimum/Straight Time/Overtime)

$1,107,046.00

Reimbursements

$303,883.00

Waiting Time Penalties

$391,715.00

Wage Statement Penalties

$455,853.00

PAGA

$1,339,037.00

TOTAL

$4,675,383.00

(Yadidsion Decl., ¶¶45-76.)

According to Class

Counsel, Plaintiffs asserted the claim for unfair, unlawful, and/or fraudulent

business practices to augment other causes of action, to aid in their

prosecution, and to extend the statute of limitations on the wage claims. (Yadidsion Decl., ¶70.)

2. Risk,

expense, complexity and likely duration of further litigation. Given the nature of the class claims, the

case is likely to be expensive and lengthy to try. Procedural hurdles (e.g., motion practice and

appeals) are also likely to prolong the litigation as well as any recovery by the class members.

3. Risk

of maintaining class action status through trial. Even if a class is certified, there is always a risk of decertification. (See Weinstat v. Dentsply Intern., Inc. (2010) 180 Cal.App.4th 1213, 1226 (“Our Supreme Court has recognized that trial courts should retain some flexibility in conducting class actions, which means, under suitable circumstances, entertaining successive motions on certification if the court subsequently discovers that the propriety of a class action is not appropriate.”).)

4. Amount offered in

settlement. Plaintiffs’ counsel obtained a $365,000 non-reversionary settlement. This is approximately 7.8% of the estimated recovery which, given the uncertain outcomes, is within the “ballpark of reasonableness.”

The $365,000 settlement amount, after being reduced by the requested deductions, leaves approximately $123,333.33 to be divided among approximately 273 class members. Assuming full participation, the resulting payments will average approximately $451.77 per class member.

5. Extent of discovery

completed and stage of the proceedings.

As indicated above, at the time of the settlement, Class Counsel conducted

sufficient discovery.

6. Experience and views

of counsel. The settlement was

negotiated and endorsed by Class Counsel who, as indicated above, is

experienced in class action litigation, including wage and hour class actions.

7. Presence

of a governmental participant. This

factor is not applicable here.

8. Reaction

of the class members to the proposed settlement. The class members'

reactions will not be known until they receive notice and are afforded an

opportunity to object, opt-out and/or submit claim forms. This factor becomes relevant during the

fairness hearing.

CONCLUSION: The settlement can be

preliminarily deemed "fair, adequate, and reasonable."

3.

Scope of the release

Effective

on the date when L & R fully funds the entire Gross Settlement Amount and funds all employer payroll taxes owed on the Wage Portion of the Individual Class Payments, Plaintiff, Class Members, and Class Counsel will release claims against all Released Parties as follows: (¶5)

[According to the Proposed Order at ¶¶2 and 3, the releases become effective "[u]pon entry of the Final Order of Approval." Ensure that the Proposed Order reflects the effective date of the releases, as set forth in the Settlement Agreement at ¶5.]

.

Release by Participating Class Members Who Are Not Aggrieved Employees: All Participating Class Members, on behalf of themselves and their respective former and present representatives, agents, attorneys, heirs, administrators, successors and assigns, release Released Parties from (i) all claims that were alleged, or reasonably could have been alleged, based on the Class Period facts stated in the Operative Complaint including, e.g., (a) any and all claims involving any alleged failure to provide meal periods; (b) any and all claims involving any alleged failure to provide rest periods; (c) any and all claims involving any alleged failure to pay minimum wages; (d) any and all claims involving any alleged failure to reimburse necessary business expenses; (e) any and all claims involving any alleged failure to furnish timely and accurate wage statements; (f) any and all claims involving any alleged failure to pay all compensation due during employment; (g) any and all claims involving any alleged failure to pay all compensation due upon discharge; (h) any and all claims involving any alleged failure to pay wages for all hours worked; and (i) any and all claims involving any alleged unfair, unlawful or fraudulent business practices premised on the Labor Code violations detailed above. Except as set forth in Section 5.3 of this Agreement, Participating Class Members do not release any other claims, including claims for vested benefits, wrongful termination, violation of the Fair Employment and Housing Act, unemployment insurance, disability, social security, workers' compensation or claims based on facts occurring outside the Class Period. (¶5.2)

o The Third Amended Complaint is the operative complaint in the Action. (¶2.1.2)

o Ensure that the Proposed Order at ¶2 presents the full release set forth in the Settlement Agreement at ¶5.2.

.

Release by Non-Participating Class Members Who Are Aggrieved Employees: All Non-Participating Class Members who are Aggrieved Employees are deemed to release, on behalf of themselves and their respective former and present representatives, agents, attorneys, heirs, administrators, successors and assigns, the Released Parties from all claims for PAGA penalties that were alleged, or reasonably could have been alleged, based on the PAGA Period facts stated in the Operative Complaint and the PAGA Notice including "(a) any and all claims involving any alleged failure to provide meal periods; (b) any and all claims involving any alleged failure to provide rest periods; (c) any and all claims involving any alleged failure to pay minimum wages; (d) any and all claims involving any alleged failure to reimburse necessary business expenses; (e) any and all claims involving any alleged failure to furnish timely and accurate wage statements; (f) any and all claims involving any alleged failure to pay all compensation due during employment; (g) any and all claims involving any alleged failure to pay all compensation due upon discharge; and (h) any and all claims involving any alleged failure to pay wages for all hours worked. (¶5.3)

o Why is the PAGA release limited to "Non-Participating Class Members Who Are Aggrieved Employees" as set forth in the Settlement Agreement at ¶5.3? Why does it not apply to Participating Class Members who are also Aggrieved Employees?

o "PAGA Notice" means Plaintiff Ryhal's March 14, 2024 letter and Plaintiff Evans's May 21, 2024 letter to L & R and the LWDA providing notice pursuant to Labor Code section 2699.3, subdivision (a). (¶1.33) Provide copies of the PAGA Notices.

o Because future PAGA claims are

subject to claim preclusion upon entry of the Judgment, Non-Participating Class

Members who are Aggrieved Employees are deemed to release the claims identified

in Paragraph 5.3 of this Agreement and are eligible for an Individual PAGA

Payment. (¶7.5.4)

· Named Plaintiffs will also

provide a general release and CC §1542 waiver. (¶5.1)

· “Released Parties” means L & R and each of its former and

present directors, officers, shareholders, owners, attorneys, insurers,

predecessors, successors and assigns. (¶1.41)

4.

May conditional class certification be granted?

1.

Standards

A detailed analysis of the elements

required for class certification is not required, but it is advisable to review

each element when a class is being conditionally certified (Amchem Products, Inc. v. Winsor (1997)

521 U.S. 620, 622-627.) The trial court

can appropriately utilize a different standard to determine the propriety of a

settlement class as opposed to a litigation class certification. Specifically, a lesser standard of scrutiny is used for settlement cases. (Dunk at 1807, fn 19.) Finally, the Court is under no “ironclad requirement” to conduct an evidentiary hearing to consider whether the prerequisites for class certification have been satisfied. (Wershba at 240.)

2.

Analysis

a.

Numerosity. There are approximately 273 class members. (Yadidsion Decl., ¶99(a).) This element is met.

b.

Ascertainability. The proposed class is defined above. The class definition is “precise, objective and presently ascertainable.” (Sevidal v. Target Corp. (2010) 189 Cal.App.4th 905, 919.) Class members are identifiable from Defendant’s records. (Yadidsion Decl., ¶99(a)-(b).)

c.

Community of interest.

“The community of interest requirement involves three factors: ‘(1)

predominant common questions of law or fact; (2) class representatives with claims or defenses typical of the class; and (3) class representatives who can adequately represent the class.'" (Linder v. Thrifty Oil Co. (2000) 23 Cal.4th 429, 435.)

As to commonality, Class Counsel contend that this action involves, inter alia, a determination about Defendant's failure to pay wages for all hours worked and overtime wages for all overtime hours worked, the resulting failure to pay final wages when required, failure to provide Class Members with required meal and rest breaks, failure to provide accurate itemized paystubs, failure to reimburse necessary business expenses, and largely derivative claims under the Business & Professions Code and the PAGA. Plaintiffs and Class Members were subject to these uniform policies and procedures during the relevant time period and are seeking the same form of compensation. (Yadidsion Decl., ¶99(e)-(f).)

As to typicality, Class Counsel contend that Plaintiffs' claims are typical of the other Class Members' claims because they arose from the same factual basis and are based on the same legal theories. Plaintiffs were employed as non-exempt Field Merchandisers during the Class Period, did not sign arbitration agreements, and were subject to the allegedly unlawful pay practices at issue in this litigation. More specifically, Plaintiffs assert the following claims in the Operative Complaint on behalf of themselves and Class Members: Defendant (1) did not compensate employees for all hours worked, thus not paying employees all minimum, straight-time and overtime wages due; (2) did not pay employees meal and rest break premiums; (3) failed to reimburse all necessary business expenses; and (4) failed to issue accurate itemized wage statements to all Class Members each pay period. (Yadidsion Decl., ¶99(c).)

As to adequacy, Class Counsel contend that Plaintiffs have no conflicts with the Class, understand their obligations as Class Representatives, have actively participated in the litigation, and are represented by experienced counsel. (Yadidsion Decl., ¶99(d); see Declarations of Rebecca Ryhal and Yvette Evans.)

d. Adequacy of class counsel.

As indicated above, Class Counsel has shown experience in class action litigation, including wage and hour class actions.

e.

Superiority. Given the relatively small

size of the individual claims, a class action appears to be superior to

separate actions by the class members.

CONCLUSION: The class may be conditionally certified

since the prerequisites of class certification have been satisfied.

5.

Is the notice proper?

1.

Content of class

notice. The proposed notice is attached to

the Settlement Agreement as Exhibit A. Its content appears to be acceptable. It

includes information such as: a summary of the litigation; the nature of the

settlement; the terms of the settlement agreement; the proposed deductions from

the gross settlement amount (attorney fees and costs, enhancement awards, and

administration costs); the procedures and deadlines for participating in,

opting out of, or objecting to, the settlement; the consequences of

participating in, opting out of, or objecting to, the settlement; and the date,

time, and place of the final approval hearing.

The Class Notice

will be mailed to Class Members in English. (¶1.11) [Why is an English-only notice sufficient?]

.

Ensure that the definition of "Released Parties" as set

forth in the Settlement Agreement at ¶1.41 is incorporated into the Notice. (Notice, ¶¶3.9-3.10.)

.

Ensure that the Notice at ¶¶6 and 7 clarifies that

requests for exclusion and written objections may be submitted to the

Administrator via fax, email, or mail, as set forth in the Settlement Agreement

at ¶¶1.43, 7.5.1, and 7.7.2.

.

The link directing recipients of the Class Notice to the

Court's website, listed in ¶9 of the Notice, is invalid. Provide a valid link.

2.

Method of class

notice:

Class Data: Not later than 15 days after the Court grants Preliminary

Approval of the Settlement, L & R will simultaneously deliver the Class

Data to the Administrator, in the form of a Microsoft Excel spreadsheet. (¶4.2)

Notice

via direct mail: Using best efforts to perform as soon as possible, and in no event later than 14 days after receiving the Class Data, the Administrator will send to all Class Members identified in the Class Data, via first-class USPS mail, the Class Notice. Before mailing Class Notices, the Administrator shall update Class Member addresses using the National Change of Address database. (¶7.4.2) Not later than 3 business days after the Administrator's receipt of any Class Notice returned by the USPS as undelivered, the Administrator shall re-mail the Class Notice using any forwarding address provided by the USPS. If the USPS does not provide a forwarding address, the Administrator shall conduct a Class Member Address Search, and re-mail the Class Notice to the most current address obtained. The Administrator has no obligation to make further attempts to locate or send Class Notice to Class Members whose Class Notice is returned by the USPS a second time. (¶7.4.3) The deadlines for Class Members' written objections, Challenges to Workweeks and/or Pay Periods and Requests for Exclusion will be extended an additional 14 days beyond the 60 days otherwise provided in the Class Notice for all Class Members whose notice is re-mailed. The Administrator will inform the Class Member of the extended deadline with the re-mailed Class Notice. (¶7.4.4)

If the Administrator, L & R or Class Counsel is contacted by or otherwise discovers any persons who believe they should have been included in the Class Data and should have received Class Notice, the Parties will expeditiously meet and confer in person or by telephone, and in good faith, in an effort to agree on whether to include them as Class Members. If the Parties agree, such persons will be Class Members entitled to the same rights as other Class Members, and the Administrator will send, via email or overnight delivery, a Class Notice requiring them to exercise options under this Agreement not later than 14 days after receipt of Class Notice, or the deadline dates in the Class Notice, which ever are later. (¶7.4.5)

Notice of any change of the date or location of the Final Approval Hearing and the Final Judgment will be posted on the Settlement Administrator's website.

(¶7.8.1)

3.

Cost of class notice. As indicated above, settlement administration costs are estimated not to exceed $10,000. Prior to the time of the final fairness hearing, the claims administrator must submit a declaration attesting to the total costs incurred and anticipated to be incurred to finalize the settlement for approval by the Court.

6.

Attorney fees and costs

CRC rule 3.769(b) states: “Any

agreement, express or implied, that has been entered into with respect to the

payment of attorney fees or the submission of an application for the approval

of attorney fees must be set forth in full in any application for approval of

the dismissal or settlement of an action that has been certified as a class

action.”

Ultimately, the award of attorney fees

is made by the court at the fairness hearing, using the lodestar method with a

multiplier, if appropriate. (PLCM Group, Inc. v. Drexler (2000) 22

Cal.4th 1084, 1095-1096; Ramos v.

Countrywide Home Loans, Inc. (2000) 82 Cal.App.4th 615, 625-626; Ketchum III v. Moses (2000) 24 Cal.4th 1122,

1132-1136.) Despite any agreement by the

parties to the contrary, “the court ha[s] an independent right and

responsibility to review the attorney fee provision of the settlement agreement

and award only so much as it determined reasonable.” (Garabedian v. Los Angeles Cellular Telephone Company (2004) 118

Cal.App.4th 123, 128.)

The question of whether Class Counsel

is entitled to $121,666.67 (1/3 of GSA) in attorney fees will be addressed at the fairness hearing when class counsel brings a noticed motion for attorney fees. Class counsel must provide the court with billing information so that it can properly apply the lodestar method and must indicate what multiplier (if applicable) is being sought as to each counsel.

Class Counsel should also be prepared to justify the costs sought (capped at $40,000) by detailing how they were incurred.

7.

Incentive Awards to Class Representatives

The Settlement Agreement provides for an enhancement award of up $20,000 ($10,000 to each named Plaintiff). In connection with the final fairness hearing, each Plaintiff must submit a declaration attesting to why he or she should be entitled to an enhancement award in the proposed amount. Each Plaintiff must explain why he or she “should be compensated for the expense or risk she has incurred in conferring a benefit on other members of the class.” (Clark v. American Residential Services LLC (2009) 175 Cal.App.4th 785, 806.) Trial courts should not sanction enhancement awards of thousands of dollars with “nothing more than pro forma claims as to ‘countless’ hours expended, ‘potential stigma’ and ‘potential risk.’ Significantly more specificity, in the form of quantification of time and effort expended on the litigation, and in the form of reasoned explanation of financial or other risks incurred by the named plaintiff, is required in order for the trial court to conclude that an enhancement was ‘necessary to induce [the named plaintiff] to participate in the suit . . . .’” (Id. at 806-807, italics and ellipsis in original.)

The Court will decide the issue of the enhancement awards at the time of final approval.

. . . .

LOS ANGELES SUPERIOR COURT, COMPLEX CIVIL DEPARTMENT

CHECKLIST FOR PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT

Department: SSC-11

RE: Rebecca Ryhal v. L. & R.

Distributors, Inc. (Case No.: 24STCV06416)

In reviewing your motion

for preliminary approval of class action settlement, the Court orders further

briefing on the items checked below.

The additional briefing

shall be due by ____________________________________, 2026. Note: if briefing is not filed by said date

the hearing will be placed off calendar. Your hearing date set for ______________, is

continued to the first available date of

_________ at _____ in Department 11.

This checklist

provides direction on what information and argument the court requires to grant

a motion for preliminary approval of a class action settlement. All parties are urged to carefully review the

checklist and fully comply with each item that applies to the case in order

that the motion may be promptly ruled upon. The content of the motion should follow the

same order as this checklist, as that is how the judge and research attorney

review the motion.

You should also consider using the form wage and hour

settlement agreements now available on the court’s website at https://www.lacourt.org/forms/all – “Civil Forms” section.

With input and unanimous consensus from an Ad Hoc Wage and Hour

Committee (chaired by Judge Hogue and Judge Cunningham and comprised of 8 plaintiff's attorneys and 8 defense attorneys), the court has posted: (1) a form class action settlement agreement, (2) a form class action/PAGA settlement agreement, (3) and a form PAGA settlement agreement. Using these forms should cut down on attorney negotiation time and reduce the lag time between a successful mediation and execution of a long form agreement. Filing a motion that is based on a form agreement and includes a redlined copy identifying modifications will also expedite the court's review process and help reduce the current backlog on hearings. These forms are encouraged but entirely optional.

I.

MOVING PAPERS (Motion and Declarations)

All facts submitted for the court to consider must be provided in the form of a declaration or other admissible evidence. The court will not consider facts stated only in the motion.

A. Introductory Information

¿ Summary of the litigation, including identity of the parties, brief procedural history, claims asserted, and general factual basis for the claims.

.

The Parties are aware

of another pending action asserting claims against L & R that may be

extinguished or affected by the Settlement: Janine Marie Bello v. L. &

R. Distributors Inc. et al., Orange County Superior Court Case No.

30-2024-01444477-CUOE-CXC. (Settlement

Agreement, ¶2.2) Provide information

regarding the status of this matter.

B. Dunk/Kullar Analysis

¿

Summary of the case, including the legal and factual basis for each claim. (Kullar

v. Foot Locker Retail, Inc. (2008) 168 Cal.App.4th 116, 133 (Kullar);

Munoz v. BCI Coca-Cola Bottling Co. of Los Angeles (2010) 186

Cal.App.4th 399, 409.)

¿ Summary

of the investigation and discovery conducted, including the specific documents

reviewed prior to agreeing to settle the case. (Dunk v. Ford Motor Co.

(1996) 48 Cal.App.4th 1794, 1802, as modified Sept. 30, 1996 (Dunk).) If

counsel’s analysis was informed by a data sample, show that the sample is

statistically reliable.

· According to Class

Counsel, “Defendant provided Plaintiffs’ counsel with all relevant policy documents and time records, payroll records and expense reports for a random sampling of approximately 30% of Defendant’s California-based Field Service Merchandisers covering the time period from March 14, 2020 through November 21, 2024.” (Yadidsion Decl., ¶15.) Demonstrate that this sample is statistically reliable.

¿ Summary of settlement negotiations, including when the settlement was reached, and whether the parties were assisted by a mediator. (Dunk, supra, 48 Cal.App.4th at p. 1802.)

¿

A summary of the risks, expenses, complexity, and duration of further litigation if the settlement is not approved.

¿

A summary of the risks of achieving and maintaining class action status.

¿

Specific information sufficient for the court to make an independent determination that the consideration being received for the release of class members’ claims is reasonable in light of the strengths and weaknesses of the claims and the risks of the particular litigation. (Kullar, supra, 168 Cal.App.4th at 129.) This discussion should specify the maximum realistic recovery of each claim asserted in the operative complaint, defenses asserted by Defendant, and any other relevant factors justifying the amount offered in settlement. If the settlement is predicated on a payment plan or is predicated on defendant’s financial situation, admissible evidence of Defendant’s financial situation should be provided, including appropriate financial documents such as a balance sheet, statement of cash flows, profit and loss statement, and the like.

¿

If approval of the settlement of class claims is requested together with approval of non-class claims (such as claims under the Labor Code’s Private Attorney General Act (PAGA)) discuss why the amount allocated to the non-class claims is fair to those affected. See Moniz v. Adecco USA, Inc. (2021) 72 Cal.App.5th 56, 77 (Moniz).

C. Class

Certification

¿

Numerosity: Total number of members in the settlement class and number of members in each sub-class (if applicable).

¿

Ascertainability: The manner by which members of the class will be identified and when. (Noel v. Thrifty Payless (2019) 7 Cal.5th 955.)

¿

Community of Interest: Discuss specific facts showing that the proposed class representatives have claims or defenses typical of the class and can adequately represent the class. (Linder v. Thrifty Oil Co. (2000) 23 Cal.4th 429, 435.)

¿

Adequacy:

¿

Class Counsel: A summary of Class Counsels' experience and a listing of all prior cases in which each named Class Counsel has been approved by a court to act as lead or co-counsel. (See Dunk, supra, 48 Cal.App.4th at p. 1802.)

¿

Class Representative(s): Provide evidence that each proposed class representative has agreed to act as same and understands his or her responsibilities. (See Soderstedt v. CBIZ Southern California, LLC (2011) 197 Cal.App.4th 133, 155-156; Jones

v. Farmers Ins. Exchange (2013) 221 Cal.App.4th 986, 998-999).

D. Claim

Requirement (if applicable)

¿

If class members are required to submit a claim to receive compensation,

explain why a claim form is necessary and either 1) provide an estimate of the

anticipated claims rate or 2) provide an explanation why a claims rate cannot

be provided.

¿

Provide a detailed explanation why a “claims made” settlement is appropriate in

this case.

¿

Indicate what actions class counsel will take to encourage claim submission.

¿

Explain why the claims process is not so burdensome that relief would be

inaccessible to class members (if applicable).

E. Miscellaneous

¿ If

appropriate, explain why the settlement includes terms that are outside the

scope of the operative complaint. (Trotsky v. Los Angeles Fed. Savings &

Loan Assn. (1975) 48 Cal.App.3d 134, 148.) If approval of settlement of a PAGA claim is requested provide a copy of Plaintiff's notice letter to the LWDA.

.

Provide copies of the PAGA notice letters submitted by Plaintiffs Ryhal and Evans, as explained in ¶1.33 of the Settlement Agreement.

¿ If notice will be given in English only, explain why this is sufficient.

¿

A statement of any affirmative obligations to be undertaken by the class member or class counsel and the reason for such obligations.

¿ Provide information regarding any fee splitting agreement and whether the client has given written approval. (Mark v. Spencer (2008) 166 Cal.App.4th 219; Rules Prof. Conduct, rule 1.5.1; Cal. Rules of Court, rule 3.769.)

· Plaintiffs and Class Members are represented by two law firms, as set forth in ¶1.35 of the Settlement Agreement. Provide information regarding any fee splitting agreement and whether the client has given written approval.

¿

Any agreement that has injunctive relief against a class representative generally is not appropriate in a class action case. Provide the authority and factual reasons why this case is an exception. See Moniz, supra, 72 Cal.App.5th at 84. ("[T]he preclusive effect of a prior judgment is determined by the court in which it is asserted, not the court that rendered it." (Fireside Bank Cases (2010) 187 Cal.App.4th 1120, 1131 [115 Cal. Rptr. 3d 80].))

¿

Explanation as to why any class representative enhancement is reasonable, including what the class representative did beyond the expected services of any class representative. (Munoz v. BCI Coca-Cola Bottling Co. of Los Angeles (2010) 186 Cal.App.4th 399, 412; Radcliffe v. Experian Information Solutions Inc. (9th Cir. 2013) 715 F.3d 1157, 1165.) In PAGA settlements explanation should be provided as to why an incentive award is appropriate.

.

Clarify that the Class Representative Service Payment amounts to $20,000 as the Agreement currently states "Class Representative Service Payments to the Class Representatives of not more than $10,000.00 each." (¶3.2.1)

.

Each Plaintiff's Class Representative payment should

not exceed $7,500, absent substantial justification. Provide justification for a payment of

$10,000.

SETTLEMENT

AGREEMENT

The settlement

agreement should address the following:

A. The

Basics

¿ Class

definition. If a PAGA representative action is settled with a proposed Class

Settlement consider whether there should be separate definitions for Class

Members and Aggrieved Employees.

.

The "Class"

definition in Class Counsel's declaration and Proposed Order is presented as

follows: "all current and former non-exempt field merchandisers, supervisory

field merchandisers, reset merchandisers, reset leads, and district managers

employed by Defendant in the State of California during the period from March

14, 2020 through April 10, 2025 who did not sign an arbitration agreement and who do not submit a timely, valid, and complete Request for Exclusion." (Yadidsion Decl., ¶21; Proposed Order, ¶1.) The Settlement Agreement "Class" definition at ¶¶1.12 and 1.5 does not explicitly exclude individuals who signed arbitration agreements. Clarify whether the parties intend to explicitly exclude individuals who signed arbitration agreements and revise the Settlement Agreement, if necessary.

.

According to the Escalator Clause in ¶8 of the Settlement Agreement: "In the event that the number of Total Workweeks included within the Class Period exceeds 19,141, the Parties agree that the settlement Class Period shall be shortened and the end date of the Class Period moved up accordingly to ensure only 19,141 Total Workweeks are included within the Class Period."

o

The parties must resolve any uncertainty regarding the Class/PAGA Periods prior to preliminary approval being granted and notice being distributed. Based on current records, the parties and the Administrator must review and verify the workweek total and confirm the end dates of the Class/PAGA Periods, revise the Class and PAGA Period definitions if needed, and remove the period-shortening option from the Escalator Clause. Ensure that the Notice and Proposed Order are modified to match any alterations to the Settlement Agreement.

o

According to the Settlement Agreement at ¶1.22, the Escalator Clause is set forth in ¶9. However, the Escalator Clause is set forth in ¶8 of the Agreement. Correct the reference.

¿

Class and Release Period: If the class and release periods extend beyond the preliminary approval explain why this is appropriate.

B. Release of Claims

¿ Scope:

The scope of any release given by class members must be defined with precision and clarity. Any released claims not presented directly in the operative complaint should be based on the facts alleged in the operative complaint. (See Amaro v. Anaheim Arena Mgmt. (2021) 69 Cal. App. 5th 521, 537 and FN. 5;

Uribe v. Crown Building Maintenance Co. 70 Cal. App. 5th 986, 1005.)

¿

Class cases which include a PAGA claim should have a

separate release for the PAGA claim tied to the facts alleged in the notice

given to the LWDA. Id.

¿ If PAGA and Class

Settlement: The Release should provide an explanation that released claims

include all PAGA claims that could have been premised on the facts alleged in

the Plaintiff's Notice and aggrieved employees will release PAGA claims even if

class members request exclusion from the class. See Robinson v. Southern

Counties Oil Co. (2020) 53 Cal.App.5th 476.

.

Why is the PAGA

release limited to "Non-Participating Class Members Who Are Aggrieved

Employees" as set forth in the Settlement Agreement at ¶5.3? Why does it not apply to Participating Class

Members who are also Aggrieved Employees?

¿

A Civil Code section 1542 waiver is generally not appropriate in a class action

case as to the putative class members (if applicable). Provide the authority

and factual reasons why this case is an exception. (Israel-Curley v.

California Fair Plan (2005) 126 Cal.App.4th 123, 129; Salehi v. Surfside

III Condominium Owners’ Assn. (2011) 200 Cal.App.4th 1146, 1159–1161.)

¿

Release Effective Date: Indicate the point in time at which the release will be

deemed

effective as to the absent class members. If the

release will be effective before settlement funds are paid, explain why this is

in the best interest of the class.

¿

Class Data: If there are confidentiality provisions, explain why they are in

the best interest of the Class and whether they will impede Class Counsel’s

ability to discharge fiduciary duties.

C. Monetary Terms of Settlement

¿

Settlement Amount: Indicate the amount of the gross settlement, how and when

the

settlement will be paid, and information regarding

payment plan, if any. If a class claim is being settled with a PAGA claim the

amounts allocated should be separated and paid only to the aggrieved employees.

¿

Deductions from the settlement fund: Indicate the amounts to be deducted from the gross settlement for attorneys' fees and costs, plaintiff incentive awards, administrative costs, PAGA payment and allocation of award to LWDA and the parties, and any other existing deductions.

¿

If there are subclasses, explain why the monetary distribution is fair to each subclass. Ensure there is a class representative who fits the definition of each subclass.

¿

Information about how attorney fees will be calculated. The percentage method, with or without a lodestar cross-check, may be used in common fund cases. (Laffitte v. Robert Half Internat., Inc. (2016) 1 Cal.5th 480, 503.) In other cases, counsel should fully brief how the fees are calculated.

¿

If wages are involved, explain how Defendant's share of taxes will be paid.

¿

Whether, and under what circumstances, amounts may revert to Defendant, and a justification for such reversion (if applicable). (Cundiff v. Verizon California, Inc. (2008) 167 Cal.App.4th 718, 728–729.)

¿ Payment

Formula: Amount and manner of distribution of the compensation to each class member, including the estimated amount each class member will receive and the timeline on which payments will be issued.

¿

Tax allocation of settlement payments.

¿

Nature of injunctive relief (if any), and valuation of such relief.

D. Notice Administration

The following issues regarding notice administration should be addressed in the settlement agreement. A copy of the proposed notice must be attached to the settlement agreement as an exhibit.

¿

Indicate the administrator for the settlement and why the bid for administration is fair.

¿ Provide the qualifications and experience of the Administrator, including evidence that the settlement administrator has procedures in place to protect the security of class data and adequate insurance in the event of a data breach or defalcation of funds.

¿

Indicate how/when the administrator will receive the class list.

¿

Indicate whether the list will be updated by the administrator prior to the initial mailing by use of National Change of Address Registry.

¿

Provide the deadline for the initial issuance of notice to class members.

¿ Ensure the content of the notice complies with California Rules of Court, rule 3.766(d). In wage and hour cases the notice should indicate the specific amount the class member will receive and how that amount was calculated. A separate breakdown for PAGA payments should be provided. The terms of the release(s) should be reflected in the Notice.

.

Ensure that the definition of “Released Parties” as set forth in the Settlement Agreement at ¶1.41 is incorporated into the Notice. (Notice, ¶¶3.9-3.10.)

.

Ensure that the Notice at ¶¶6 and 7 clarifies that requests for exclusion and written objections may be submitted to the

Administrator via fax, email, or mail, as set forth in the Settlement Agreement

at ¶¶1.43, 7.5.1, and 7.7.2.

.

The link directing recipients of the Class Notice to

the Court's website, listed in ¶9 of the Notice, is invalid. Provide a valid

link.

¿

Ensure the notice accurately reflects the Court's current social distancing

procedures for attendance at hearings and review of court files. (Counsel

should check the Court website for most current information.)

¿

Indicate how and when payments will be processed.

¿

Indicate how notices returned to the administrator as undeliverable will be

handled.

¿Explain

how re-mailed notices, if any, will be handled. Will class members who receive

re-mailed notices be given an extended deadline to respond (i.e., opt-out,

object, and dispute workweeks)?

¿

Explain how notice of any change of the date or location of the hearing will be given.

¿

Indicate whether there will be a settlement website. If so, provide the URL.

¿

If publication notice will be given indicate the timing, locations, and manner by which publication notice will be disseminated.

¿

Explain how notice of final judgment will be given to the class. (Cal. Rules of Court, rule 3.771(b)) (e.g. Posted on claims administrator's website.)

E. Responses to Notice

¿

Description of the procedures for submitting written objections, requests for exclusion, claim forms (if applicable) and disputes to estimated payments.

¿

Indicate the deadline to submit objections, requests for exclusion, claim forms (if applicable), and/or disputes to workweeks. Confirm the deadline is reasonable and that class members who receive re-mailed notices will be given an extension.

¿

The objection procedure should be the same as the opt-out procedure, with the only requirement being that objections be mailed to the settlement administrator and not filed with the court.

¿

Do not include language indicating that class members may only be heard at final approval if they have complied with all objection procedures or that they must use specific language to request exclusion, or, if a specific procedure is sought, explain why it is necessary. In general, the court will hear from any class member who attends the final approval hearing and asks to speak regarding his or her objection.

F. Cy Pres Distribution

¿

Indicate the length of time from issuance for which settlement checks will remain valid.

¿

Identify the fund to which uncashed checks will be directed and detail the steps that will be taken to ensure compliance with Code of Civil Procedure section 384. The Court’s Omnibus Trailer Bill of 2018 replaced the language of the prior statutory distribution scheme under Code of Civil Procedure, section

384 with a requirement that the Court re-open judgments following the final distribution of funds to include the cy pres in the judgment and to include the unclaimed amount, plus an unspecified amount of interest. Such information should be actively contemplated/provided for within the current terms of the settlement.

¿

Explain why the cy pres distribution fulfils the purposes of the lawsuit or is otherwise appropriate. (State of California v. Levi Strauss & Co. (1986) 41 Cal.3d 460, 472; In re Microsoft I-V Cases (2006) 135 Cal.App.4th 706, 722; Nachshin v. AOL, Inc. (9th Cir. 2011) 663 F.3d 1034, 1038–1041; Dennis v. Kellogg Co. (9th Cir. 2012) 697 F.3d 858, 865; Code Civ. Proc., § 384.)

¿

Provide declarations disclosing the interest or involvement (or lack thereof) by any counsel or party in the governance or work of the cy pres recipient. Alternatively, direct all uncashed checks to the state controller's office.

G. MISCELLANEOUS

¿ Assure the Settlement Agreement and Notice are consistent and that the Settlement Agreement has been signed by all parties and counsel. Carefully proofread both.

¿

The Settlement Agreement and paperwork derivative thereof should not suggest

that the end result of court approval will be dismissal of the Action with

prejudice or entry of a Final Judgment and Order dismissing with prejudice all

claims. See California Rules of Court, rule 3.769(h).

III. EXHIBITS TO

THE MOTION

¿

Provide proof of submission of the proposed settlement agreement to the LWDA.

(Lab. Code, § 2699, subd. (l)(2).)

¿ Include

a proposed Judgment, which should not include a dismissal or any findings not

contained in the Final Approval Order. (Cal. Rules of Court, rule 3.769(h).)

.

According to the Proposed Order at ¶¶2 and 3, the releases become

effective “[u]pon entry of the Final Order of Approval.” Ensure

that the Proposed Order reflects the effective date of the releases, as set

forth in the Settlement Agreement at ¶5.

.

Ensure that the

Proposed Order at ¶2 presents the full Participating Class Member Release as set forth in the Settlement Agreement at ¶5.2.

¿

All exhibits should be bookmarked, as set forth in the Presiding Judge's First Amended General Order of May 3, 2019 re: Electronic Filing, available on the Court website.

If the Settlement Agreement is modified pursuant to this checklist, please submit both a red-lined copy showing changes made as well as a final version signed by all parties. Do not submit an addendum in lieu of a full amended settlement agreement including all operative settlement terms.

Modify notice to match any alterations to the Settlement Agreement.

Date: June 18, 2026

____

JUDICIAL

OFFICER